

Himani Sharma vs Vivek Sharma on 1 April, 2019

Equivalent citations: AIRONLINE 2019 UTR 132

Bench: Sudhanshu Dhulia, Ramesh Chandra Khulbe

IN THE HIGH COURT OF UTTARAKHAND AT NAINITAL

Appeal from Order No.441 of 2018

Himani Sharma

..... Appellant

Versus

Vivek Sharma

..... Respondent

Present:- Mr. Yashpal Singh, Advocate holding brief of Mr. Neeraj Garg, Advocate for appellant.
Mr. I.P. Kohli, Advocate, for the respondent.

Coram: Hon'ble Sudhanshu Dhulia, J.

Hon'ble Ramesh Chandra Khulbe, J.

Hon'ble Sudhanshu Dhulia, J. (Oral) This is wife's appeal under Section 19 of the Family Courts Act, 1984 challenging the order dated 27.09.2018 passed by Additional Judge, Family Court, Dehradun in O.S. No.774 of 2017, by which her application for expenses pendente lite moved under Section 24 of the Hindu Marriage Act, 1955 has been dismissed. Although one time expenses of Rs.25,000/- (Rupees Twenty Five Thousand Only) for litigation has been given to the appellant. In other words, the application of the appellant/wife has partly been allowed. Against this order, the appellant has filed the present appeal before this Court.

2. Heard learned counsel for the parties.

3. The order of the Family Court clearly states that monthly maintenance is already being given by the respondent/ husband in form of Rs.10,000/- (Rupees Ten Thousand Only) to the appellant/wife. Apart from this, the entire education expenses of the child, who is studying in Brightland School at Dehradun as well as kitchen, water charges are also borne by the respondent/husband, though both the appellant and respondent are residing in the same house.

4. The reasons assigned by the Family Court are satisfactory, but we are of the opinion that Rs.25,000/- (Rupees Twenty Five Thousand Only) as awarded by the court below towards litigation expenses will not be sufficient, and therefore, we increase the amount and direct the respondent/husband to give further amount of Rs.25,000/- (Rupees Twenty Five Thousand Only)

to the appellant/wife within a period of one week from today.

5. Meanwhile, we also direct the Family Court, Dehradun to proceed with the matter as expeditiously as possible in the light and spirit of Section 21-B of the Hindu Marriage Act, 1955.

6. A judicial notice can be taken of the fact that these orders are not adhered to. We direct the concerned Family Court to give day-to-day hearing, if possible and no unnecessary adjournments shall be given to any of the parties so that the matter may come to an end as expeditiously as possible. Let the matter be decided by the Family Court within a period of three months from the date a certified copy of this order is received by the court below.

7. The appeal from order stands disposed accordingly.

8. Let a certified copy of this order be given to the learned counsel for the parties today itself on payment of usual charges.

(Ramesh Chandra Khulbe, J.) (Sudhanshu Dhulia, J.) 01.04.2019 Nitesh